

ALITO, J., dissenting

proach to the *Hurtado* question that the majority takes in this case, the holding in that case could be called into question.

The majority's only other reason for overruling *Apodaca* is that it is inconsistent with related decisions and recent legal developments. *Ante*, at 106–107; *ante*, at 112 (SOTOMAYOR, J., concurring in part). I agree that Justice Powell's view on incorporation is not in harmony with the bulk of our case law, but the majority's point about "recent legal developments" is an exaggeration. No subsequent Sixth Amendment decision has undercut the plurality. And while Justice Powell's view on incorporation has been further isolated by later cases holding that two additional provisions of the Bill of Rights apply with full force to the States, see *Timbs*, 586 U.S., at 149 (Eighth Amendment's Excessive Fines Clause); *McDonald*, *supra*, at 791 (plurality opinion) (Second Amendment), the project of complete incorporation was nearly done when *Apodaca* was handed down. See *McDonald*, *supra*, at 765, n. 13.

While the majority worries that *Apodaca* is inconsistent with our cases on incorporation, the majority ignores something far more important: the way in which *Apodaca* is intertwined with the body of our Sixth Amendment case law. As I have explained, see *supra*, at 152, the *Apodaca* plurality's reasoning was based on the same fundamental mode of analysis as that in *Williams*, 399 U.S. 78, which had held just two years earlier that the Sixth Amendment did not constitutionalize the common law's requirement that a jury have 12 members. Although only one State, Oregon, now permits

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Art. VII, §§ 5(3)–(5); Pa. Const., Art. I, § 10 (providing that "[e]ach of the several courts of common pleas may, with the approval of the Supreme Court, provide for the initiation of criminal proceedings therein by information"—a condition that has now been met in all counties); see also 42 Pa. Cons. Stat. § 8931 (2015); S. D. Const., Art. VI, § 10; Utah Const., Art. I, § 13; Vt. Rule Crim. Proc. 7(a) (2018); Wash. Rev. Code § 10.37.015 (2019); Wis. Stat. § 967.05 (2015–2016); Wyo. Stat. Ann. § 7–1–106(a) (2019).